

based on a lack of evidence, the court does not find that defendants' appeal of the court's order was done in bad faith.

As plaintiff has not demonstrated defendants' have acted in bad faith, the request for sanctions against defendants pursuant to Code of Civil Procedure §§ 128.5 is denied.

2. M-CV-0092493 Wells Fargo Bank NA v. Santiago, Jazz

Motion for Judgment on the Pleadings

The court may grant a motion for judgment on the pleadings in favor of a plaintiff where the complaint states facts sufficient to constitute a cause of action, and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The grounds for the motion must appear on the face of the challenged pleading, or be based on facts which the court may judicially notice. (*Id.* at subd. (d).)

Here, plaintiff has not provided a declaration of costs in support of the costs it is requesting. Therefore, plaintiff does not demonstrate entitlement to the requested costs of \$430.

Additionally, the prevailing party of a granted motion must provide all other parties or their attorneys with notice of the court's decision or order. (Code. Civ. Proc., § 1019.5, subd. (a).) Here, there is no evidence in the court's file that plaintiff has served defendant with notice of entry of the court's order deeming matters admitted.

The court on its own motion continues this matter to **September 22, 2026 at 8:30 a.m. in Department 32**. Plaintiff shall file and serve a notice of entry of the court's order deeming matters admitted, a declaration of costs in support of the costs plaintiff is requesting, and a notice of continued hearing by September 11, 2026.

3. M-CV-0095373 Mariner Finance v. Moser, Ronald T Sr.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Deem Matters Admitted

Plaintiff's unopposed motion to deem admitted plaintiff's request for admissions, set one, is granted. (Code Civ. Proc., § 2033.280.) Defendant Ronald T. Moser, Sr. is deemed to have admitted the matters set forth in plaintiff's requests for admissions, set one.